

SFIO Vs. Adarsh Buildtech Ltd

CIS COMA/05/2019

Present: Sh. Neeraj Dev Gaur and Bhim Singh counsel for applicant.

Heard on the application filed by applicant Megha Chauhan in COMA/05/2019 titled as Serious Fraud Investigation Office Vs. Adarsh Buildstate Ltd and others seeking return of her passport for the purpose of renewal of her minor child's passport. The application is supported with an affidavit furnished by applicant Megha Chauhan

It is averred in the application that passport of applicant is on the record of abovestated case and same is required by her for production before the passport authority in order to get the passport of her minor namely Yashas renewed.

Learned Prosecutor on behalf of SFIO stated at bar that he does not want to file the reply. However, he has stated that applicant may be directed to produce the same within stipulated period and same may be released on furnishing adequate surety

In the light of above situation, this court is of the view that reasons mentioned by applicant in her application for return of passport is genuine. However, the court is under an obligation to check that passport be returned by the applicant within time fixed. Therefore, the passport is ordered to be released on furnishing

personal bonds in the sum of Rs. 50,000/- with one surety in the like amount.

It is also made clear that return of passport does not mean that applicant can fly from India without seeking permission of the court. It is also ordered that applicant accused will return the passport to this court within one month from the date of its actual release. Learned counsel is directed to get the certified copy of passport and place the same on record before receiving the original passport. Accordingly application disposed off and tagged with the main case file.

Date of Order:08.07.2022  
mamta

(Dr. Virender Parshad)  
Addl. Sessions Judge,  
Gurugram UID HR 0082